

PRINCE N. A. BROWNE, WILLIAM SAYDEE,
AND MOSES KPADEH, Appellants, v.
REPUBLIC OF LIBERIA AND RODERICK N.
LEWIS, presiding by assignment over the Circuit
Court for the First Judicial Circuit,
Montserrado County, Appellees.

APPEAL FROM RULING OF JUSTICE DENYING A WRIT OF CERTIORARI.

Argued May 24, 1973. Decided May 28, 1973.

1. No appeal can be taken from the refusal of a Justice in chambers to order issuance of an alternative writ upon presentation to him of a petition for a remedial writ.
2. To declare what the law is, or has been, is a judicial power.
3. Statutes are to be construed as they were intended to be understood when they were enacted.
4. A well-settled rule of practice will not be set aside when to do so would probably cause great inconvenience and confusion in legal practice.

After being denied bail in the lower court, defendants therein petitioned the Justice in chambers for issuance of a writ of certiorari. The Justice denied the petition and refused to issue an alternative writ, stating that he was not convinced that the petition warranted it. The petitioners excepted to the ruling denying the alternative writ and announced an appeal therefrom, filing a document entitled "notice of appeal." The Supreme Court *dismissed* the appeal, holding that no appeal can be taken from the refusal of a Justice in chambers to issue an alternative writ upon a petition presented to him for a remedial writ.

C. Abayomi Cassell and *Joseph J. Chesson* for appellants. The *Minister of Justice*, the *Solicitor General*, and *Lawrence Morgan* for appellees.

MR. CHIEF JUSTICE PIERRE delivered the opinion of the Court.

When respondent Judge Roderick N. Lewis denied petitioners' application for bail in a case of conspiracy against the State now pending before the First Judicial Circuit Court, defendants in the said case petitioned the Justice in chambers for the issuance of a writ of certiorari, claiming the ruling of Judge Lewis to be illegal and prejudicial to their interests. Mr. Justice Azango denied the petition and refused to issue the alternative writ, and he gave as his ground that he was not satisfactorily convinced that the petition warranted it. He summoned the parties on both sides before him and so informed them in writing. The petitioners excepted to and announced an appeal from this decision of the Justice, and also filed the document entitled "notice of appeal," addressed to the Justice, to protect their interests, they stated therein.

The Court met specially to hear the appeal, for it had already stopped hearing cases for the present March Term preparatory to the handing down of opinions and adjournment of the aforesaid Term. This was done pursuant to the Civil Procedure Law, which provides that "A final decision by a Supreme Court justice in a proceeding in certiorari, mandamus, or prohibition may be appealed to the Supreme Court en banc. The appeal shall be heard and determined immediately, in or out of term time." Rev. Code 1:16.26.

Out of the tangled background two points seem to arise for our consideration: (1) Does the Supreme Court have jurisdiction over this matter, and (2) Should the Justice's exercise of discretion to grant or refusal to grant a remedial writ be questioned by the parties? We shall pass upon these two issues in the reverse order of their presentation.

The position taken by the Justice in refusing to grant the alternative writ of certiorari finds support in the Civil Procedure Law, which states that the writ shall not issue in any case in which it appears that the petition is devoid of legal merit. Rev. Code 1:16:27(b). It ap-

pears to us that this leaves the determination as to whether or not there is legal merit in a petition for a remedial writ to the discretion of the Justice to whom the petition has been addressed. But section 16:27(a) makes it positively clear that the writ shall not issue as a matter of right. Hence, there would seem to be no doubt as to the intention of the lawmakers in respect to the exercise of discretion by the Justice in chambers, who alone must determine whether or not he should grant or refuse to grant remedial writs.

We would like to mention in passing that unless and until the Justice in chambers orders an alternative writ issued, none of the special remedial proceedings can be commenced in the Supreme Court. Applications for these writs do not and cannot statutorily or constitutionally originate before the bench en banc. The Justice in chambers is, therefore, the only gateway through which special relief might be sought of the Supreme Court, and the Justice in chambers alone is clothed with legal authority to say if applications for such relief are warranted by the petitions filed. We would, therefore, uphold Mr. Justice Azango's refusal to grant the alternative writ for the reason which he stated in writing in the following words: "I am unwilling to order the issuance of the alternative writ, because I am not satisfactorily convinced that the petition and prayer warrant it." According to the statutes cited above, no one is authorized to question this refusal of the Justice in chambers because no one except Mr. Justice Azango himself can say whether or not he was satisfied with the grounds alleged in the petition.

In *Mitchell v. Nelson*, mandamus proceedings decided in the present Term, on April 26 just past, this Court spoke of such discretionary powers.

"A Justice's discretion to grant or refuse to grant a remedial writ cannot be questioned, even though his decision in the matter after the hearing might be ap-

pealed to the bench en banc. Proper grounds having been shown to him in the petition, he may order the Clerk to either issue the alternative writ or reject the petition; either course being left to his sound discretion. The exercise of this discretion should be seriously considered, with due regard to the great hurt to the Court and/or injustice to the parties which could be done, growing out of any abuse of his discretion."

It was argued before us that under the Judiciary Law, Rev. Code 17:22, "The Supreme Court shall have jurisdiction of all appeals from courts of record and from rulings of Justices of the Supreme Court presiding in chambers on applications for remedial and extraordinary writs, including refusal to issue such writs." It is clear that according to this statute the Justice is not the sole determiner as to whether he should or should not grant remedial writs, since the applicant would have a right to appeal his refusal to the bench en banc. Clearly, there is conflict between this section and section 16.27(a), *supra*, which states that "No such writ shall issue as a matter of right." These two statutes being irreconcilable, which of them must in future govern procedure in the chambers of the Supreme Court?

It was argued by the respondents' counsel that where two statutes are in conflict, one will cancel out the other, and the old law will be applicable. We find it difficult to harmonize our views with this reasoning. There is a principle of law that, "if a statute that repeals another is itself repealed afterwards, the first statute is revived, without any formal words for that purpose." BLACKSTONE'S COMMENTARIES. The question before us is not repeal of a statute, but rather irreconcilable conflict between the meaning of the text of two statutes dealing with discretion exercised by the Justice in chambers with respect to the granting of remedial writs. Legislative intent is the primary and controlling factor back of every law passed by the Legislature. 50 AM. JUR., *Statutes*,

§ 223. With that in mind, can we say that the Legislature intended to create this irreconcilable conflict now existing between these two laws? If they did not intend to create this unworkable situation, should not the courts construe these two statutes with a view to determining what the legislative intent was?

Unless all of the rules which govern our society are consistent, their enforcement effects only confusion in the society and is bound to result in chaos. Where the application of two laws conflict, with respect to the performance of a given duty, and where they so conflict with each other that the enforcement of one would negate the proper enforcement of the other, the most recent of the two should be recognized. In the case of these two statutes, however, they are both contained in the Liberian Code of Laws Revised, rendering it difficult if not impossible, for us to determine which of the two is the most recent statute. But where is the consistency in granting discretion to the Justice in chambers by providing that remedial writs shall not issue as a matter of right, and at the same time legislating denial of that discretion in making the exercise thereof subject to appellate review?

There are guides to judicial construction of legislative intent.

"After all it must be remembered that the courts are the final arbiters as to the proper construction of statutes; and in discharging this important function, they are at liberty to disregard a Legislative construction, which in their judgment, is not a correct exposition of the original act." 36 CYC. 1142-1143.

Under all past statutes, even including the 1956 Code, there has never been provision made for the discretion of a Justice to be questioned upon his refusal to grant a remedial writ. Therefore, not only does such provision in the new Judiciary Law mentioned above conflict with the statute which places remedial writs outside the category of writs to which parties are entitled as of right, it

also conflicts with the practice in this jurisdiction from the earliest times of these writs.

"Statutes are to be construed not according to their mere letter, but according to the intent and object with which they were made. It occasionally happens therefore that the judges who expound them are obliged, in favor of intention, to depart in some measure from the words. And this may be either by holding that a case apparently within the words, is not within the meaning; or that a case apparently not within the words, is within the meaning." STEPHEN COMMENTARIES, 41.

The Legislature could not have intended to give, and at the same time to deny, the Justice in chambers discretion to grant or refuse to grant remedial writs.

"Ordinarily, the Legislature speaks only in general terms, and for that reason it often becomes the duty of the court to construe and interpret a statute in a particular case for the purpose of arriving at the legislative intent, and of determining whether a particular act done or omitted falls within the intended inhibition or commandment of the statute. . . . There is always a tendency, it has been said, to construe statutes in the light in which they appear when the construction is given. The true rule is that statutes are to be construed as they were intended to be understood when they are passed. Statutes are to be read in the light of attendant conditions and the state of the law existent at the time of their enactment." 25 R.C.L., §§ 211, 215.

"The judicial department of every government, where such department exists, is the appropriate organ for construing the legislative acts of the government. Although it is true under proper circumstances that some aid may be derived from executive or legislative construction of statutes, it is ultimately

the court's province and duty to construe, in good faith, laws enacted by the Legislature. In this respect, it has been said: 'To declare what the law is, or has been, is a judicial power; to declare what the law shall be is legislative.' It is the duty of the courts to construe statutes for the purpose of determining whether a particular act done or omitted falls within the intended inhibition or commandment of such statute, and, in general, for the purpose of enabling the enforcement of the statutes with reasonable certainty. However, in accordance with the general rule that the province of a court is to decide real controversies, and not to discuss or give opinions on abstract propositions or moot questions, a court will not construe provisions of a statute other than those involved in the case before it." 50 AM. JUR., *Statutes*, § 219.

We hold, therefore, that the Legislature did not intend to create conflict between the two statutes referred to hereinabove. We hold that the Justice in chambers has a legitimate right to refuse to grant a petition for a remedial writ, if in his discretion the said petition is not meritorious. In *Brownell v. Brownell*, 5 LLR 76 (1936), this Court said that a well-settled rule of practice will not be set aside where it would probably cause great inconvenience and confusion in legal practice. Appeals from the refusal to order issuance of remedial writs, being an exercise of discretion by the Justice in chambers, will not be heard in the future.

We come now to consider the question of jurisdiction. Does this Court have jurisdiction over this matter on appeal? Normally, and according to Supreme Court practice which has never been changed, an adverse ruling in chambers against a party is heard on appeal by the bench en banc, by the Justice ordering the Clerk to send the records (i.e., petition, returns, and ruling) forward for

hearing by the full bench. That obtains in cases where the alternative writ is issued, and where returns were filed by the respondents and a ruling made by the Justice. In such a case issue was joined with the filing of returns; and in such a case the issuance of the alternative writ gave the Justice jurisdiction over the matter and over the parties.

In the instant case the Justice in chambers refused jurisdiction for the reasons already stated in this opinion and so no writ was issued. Consequently, no issue was joined between the parties, and there were no records to send for appellate review except the petition. In the circumstances, the bench en banc could not pass upon the petition after the Justice had refused jurisdiction, without violating the Constitution with respect to its provision that the Supreme Court shall have original jurisdiction only over certain specified cases. Article IV, Section 2nd. In order for the Supreme Court to have acquired jurisdiction, one of two things would have had to happen: either the Justice in chambers was to have sent the matter forward for hearing by the full bench for some reason after he had ordered returns filed, or he had granted an appeal from a ruling which he made after hearing the parties. Neither of these two conditions exists in this case.

The Supreme Court does not have original jurisdiction over petitions for remedial writs and only passes upon them after the Justice has acted as aforesaid. In every case of a hearing by the bench en banc on a petition for a remedial writ, issue must have been joined as a result of action taken on the petition by the Justice. For instance, the bench en banc cannot order respondents to file returns, nor order the Clerk to issue stay orders in proceedings pending before the trial courts; these are functions inherent in the office of the Justice presiding in chambers, which the Supreme Court may not exercise

without violating the Constitutional provision with respect to original jurisdiction.

It is, therefore, our opinion that in the absence of any action taken on the petition by the Justice in chambers, the "notice of appeal" filed is a nullity, insofar as we are constitutionally not clothed with authority to act upon it. In hearings on petitions for remedial writs the bench en banc acts upon the merits of the petition only after the merits have been passed upon by the Justice in chambers, or where he finds that he cannot act unilaterally, he sends the record forward for decision by the full bench. Neither of these two requirements has been met in the instant case and we, therefore, find ourselves faced with the proposition of either ordering the respondents to file returns, which in our opinion would be assuming original jurisdiction, or refusing original jurisdiction and dismissing the purported appeal. We think it proper to take the latter course.

Furthermore, the notice of appeal filed by petitioners was venued before the Justice in chambers, although he had refused jurisdiction and had denied issuance of the alternative writ. It would seem to us that in such circumstance the appeal should have been venued before the Supreme Court, since the purpose was to appeal from the Justice's refusal to grant the alternative writ. We cannot review matters venued before the Justice in chambers, unless he had taken jurisdiction and referred the matter for appellate review, or an appeal had been taken from his ruling.

The respondents have argued that they had not been properly notified of what the petition contained, so as to have given them an opportunity to defend against it. Under the rules of notice this is a legitimate contention and it is, therefore, well taken. It is our opinion that a copy of the petition might have been annexed to the notice of appeal and furnished the respondents so that they

would have had notice, had it been possible to look into the merits of the matter.

For the reasons stated hereinbefore, we have no alternative but to dismiss the appeal and do hereby order that the trial in the court below proceed. It is so ordered.

Appeal dismissed.